

		construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect for allegations of fraud. (<i>Id.</i>) However, less specificity is required of fraud claims when a defendant must necessarily have more information or knowledge concerning the facts of the controversy than a plaintiff. (<i>Alfaro v. Community Housing System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384.) Thus, the Demurrer to the fifth cause of action for fraud is sustained with leave to amend. Defendant is ordered to serve notice.
5.	2025-1517586 Je Beaute, Inc. vs. Guo	The Court erroneously referred to this matter as having been continued from 5/13 for “lack of an interpreter.” But subsequent to posting, the Court was presented with supplemental briefing (ROAs 177 and 179) which refreshed the Court’s recollection as to the reason it continued the original motion to expunge lis pendens. Based on the supplemental briefing, the Court is satisfied both that the matter concerns real property, and as to the validity of the claim. Accordingly, the motion to expunge lis pendens is DENIED.
6.	2022-1262809 Haddad vs. Ismail	The Court grants Defendants Wissam Ismail and Omer Ismail’s Motion to vacate the 7/20/23 default and the 10/26/23 Judgment entered against them on Plaintiff Wasfi Haddad’s Complaint for breach of contract. <u>Evidentiary Objections</u> The Court overrules Defendants’ objection nos. 1-5. <u>Legal Standard</u> Without valid service of summons, the court never acquires jurisdiction over defendant. Hence, the statutory ground for the motion to quash is that the court lacks jurisdiction over the defendant. (CCP § 418.10(a)(1); <i>see Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371—”[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void” (internal quotes and citation omitted).) “When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 CA4th 403, 413; <i>see Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1163.)